

8. 9:00 AM CASE NUMBER: C25-02399
CASE NAME: ROGER MONTOYA VS. PACIFIC BELL TELEPHONE COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING:

The unopposed demurrer of defendant Contra Costa County is dropped from calendar as moot. The Court notes that the Plaintiff filed a request for dismissal of defendant Contra Costa County without prejudice on October 13, 2025.

9. 9:00 AM CASE NUMBER: MSC22-00100
CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.
HEARING ON SUMMARY MOTION
FILED BY: GHC OF CONTRA COSTA, LLC
TENTATIVE RULING:

Motion **continued** by the Court to February 6, 2026 at 9:00 a.m.

10. 9:00 AM CASE NUMBER: MSC22-00100
CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.
HEARING ON SUMMARY MOTION
FILED BY: NGUYEN-TRAXLER, ANN, MD
TENTATIVE RULING:

Motion **continued** by the Court to February 6, 2026 at 9:00 a.m.

11. 9:00 AM CASE NUMBER: N25-2066
CASE NAME: CLAIM OF: AYUSHMAN SENMAZUMDARAYUSHMAN SENMAZUMDAR
*HEARING ON MINOR'S COMPROMISE
FILED BY: SENMAZUMDAR, JUDHAJIT
TENTATIVE RULING

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the clerk's office on December 16, 2025.

12. 9:01 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION FOR DISCOVERY COMPEL THIRD PARTY MAGIDOV CPA TO COMPLY WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS, PRODUCE RESPONSIVE DOCUMENTS, AND MONETARY SANCTIONS**

FILED BY: JOHNSON, GARY

TENTATIVE RULING:

Factual Context of Discovery Motion and Scope of the Subpoena Sought

Defendant and Cross-Complainant Gary Johnson, by and through his attorney, Micah Jacobs, issued a subpoena for production of business records to Magidov CPA, a third-party witness, on March 5, 2025 (the "Subpoena"). As alleged in the now operative Second Amended Cross-Complaint ("SACC"), Magidov CPA is the accounting firm that was hired by the plaintiff Sunpoint Public Adjusters, Inc. ("Sunpoint") to prepare a fair market valuation of Sunpoint in connection with a buy-out of defendant Johnson's 20% ownership interest in Sunpoint. (SACC ¶¶ 15-28). The Second Amended Cross-Complaint alleges a conspiracy by which Sunpoint hired Magidov CPA to prepare an undervalued valuation of Sunpoint. The 2ACC alleges that Sunpoint withheld critical information from Magidov CPA, and instead provided a limited range of financial records to Magidov CPA for the intended purpose of artificially minimizing Sunpoint's corporate valuation. The 2ACC alleges that Cross Defendants did this to force Defendant Johnson to sell his stock in Sunpoint below its fair value amount.

The Subpoena to Magidov CPA sought:

- (1) the Business Valuation Analysis 20 that Magidov CPA prepared for Sunpoint;
- (2) all communications between Magidov CPA and the Cross-Defendants or anyone else about the valuation project for Sunpoint; and
- (3) all documents that were provided to Magidov CPA and upon which it relied in preparing the Valuation for Sunpoint. (See Jacobs Decl., ¶ 3, Exh. 1.)

The parties entered into a stipulated protective order. Thereafter, on August 7, 2025, Magidov CPA produced 439 pages of documents. Counsel for Defendant Johnson immediately reviewed the documents and informed Magidov's counsel that the production appeared to be missing any email communications regarding the Sunpoint valuation project as requested in #2 above. Magidov's counsel acknowledged, on August 7, 2025, that it possessed an additional 1500 pages of responsive emails and attachments.

Defendant Johnson's moving papers, filed two months later on October 7, 2025, asserted that "Since that time [August 7, 2025], however, [Magidov] has failed and refused to produce other responsive documents, including about 1500 pages of critical email communications and attachments it acknowledged having but refuses to produce.

About two weeks later, on October 23, 2025, Magidov's counsel emailed the approximately 1500

pages of documents to Defendant Johnson. (Angioni Decl., Ex. C) Magidov's counsel requested the motion be taken off calendar, in view of the production. (Angioni Dec., ¶ 6, Ex. C)

On November 4, 2025, Defendant Johnson's counsel sent an email to Magidov's counsel declining to withdraw the motion to compel. (Jacob's Reply Dec., Ex. A) Defendant Johnson's counsel asserted there was "substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues," pointed out that the emails produced did not have any of their original attachments, argued that they could not get all of the emails from Plaintiff Sunpoint "because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly," pointed out the lack of any of Magidov's internal emails regarding the Sunpoint valuation project, and requested follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox.

Extent of Remaining Discovery Dispute in view of Post Motion Production

Defendant Johnson states that after his November 4 email to Magidov's counsel, he did not hear from Magidov's counsel until January 15, 2026. (Jacob's Reply Dec. ¶¶ 7-8)

On January 15, 2026, Magidov's counsel emailed Defendant Johnson's counsel acknowledging that Magidov "withheld certain email attachments from the document production due to the presence of sensitive financial and personal identifying information, including Social Security numbers." (Angioni Dec., ¶ 7, Ex. D) Magidov's counsel asserts that neither Plaintiff nor Defendant addressed her questions concerning "the process of protecting this highly sensitive information." (Angioni Dec., ¶ 7, Ex. D)

Magidov's counsel asserts that other than these attachments there are no documents at issue in this request for production of documents.

Defendant Johnson's counsel asserted "We have offered to pay 50% of the cost of production and Sunpoint has agreed to pay the other 50%." (Jacobs Reply Dec. ¶ 6)

Defendant Johnson argued that the stipulated protective order in this case permits a nonparty to designate productions as "Confidential" or "Highly Confidential – Attorneys' Eyes Only."

Magidov has taken the position that it must redact highly sensitive financial information from the attachments, including Social Security numbers.

Magidov's objections to emails between it and Plaintiff Sunpoint

Magidov's counsel objected several times during the meet and confer correspondence with Defendant Johnson's counsel to having to produce, as a nonparty, emails that Defendant Johnson could obtain from Plaintiff Sunpoint. (See, e.g., Email from Ms. Angioni dated October 15, 2025 12:12 pm, contained in Ex. A to Jacob's Reply Dec.) In that email, Magidov's counsel referenced *Calcor Space Facility, Inc., v. Superior Court* (1997) 53 Cal. App. 4th 216 for the proposition that "the burdens of discovery may be placed on a nonparty "only if" parties "do not possess the material sought to be

discovered” and the subpoenaing party “demonstrate[s] why it cannot obtain the needed materials” from parties.

In an email dated November 4, 2025, Defendant Johnson listed the following concerns about the 1500 pages of emails: [1] substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues,” [2] emails produced did not have any of their original attachments, [3] Defendant could not get all of the emails from Plaintiff Sunpoint “because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly,” [4] the lack of any of Magidov’s internal emails regarding the Sunpoint valuation project, and [5] follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox. (Jacob’s Reply Dec., Ex. A) Defendant Johnson responded to Magidov’s *Calcor* objection in the third, fourth and fifth reasons above explaining that the request for emails encompasses more than materials Defendant could obtain from Plaintiff Sunpoint.

Findings

Magidov has complied with the subpoena in part by producing, on August 7, 2025, the first batch of 439 pages. This was soon after July 25, 2025 when Defendant Johnson provided Magidov with a copy of the parties’ stipulated protective order. Magidov further complied by producing the second round of approximately 1500 pages of documents on October 23, 2025. However, that compliance did not happen until after much back and forth and Defendant Johnson’s filing of this motion to compel on October 7, 2025.

To date the Court does not see substantive responses from Magidov to Defendant Johnson’s concerns listed in the November 4, 2025 email: [1] substantial duplication and hundreds of pages are completely unreadable and illegible due to formatting issues,” [2] emails produced did not have any of their original attachments, [3] Defendant could not get all of the emails from Plaintiff Sunpoint “because it appears that key documents were sent by Michael Thchalikian and not Sunpoint directly,” [4] the lack of any of Magidov’s internal emails regarding the Sunpoint valuation project, and [5] follow up on a reference to documents provided to Magidov from Sunpoint via Dropbox. (Jacob’s Reply Dec., Ex. A)

Magidov’s objection regarding the burdens of discovery on a nonparty are valid, however Defendant Johnson’s counsel has adequately answered the objection and demonstrated why Defendant Johnson cannot get them from Plaintiff Sunpoint. Defendant Johnson explained that Plaintiff Sunpoint had refused production (Jacob’s August 13, 2025 8:58 am email, Jacob’s Reply Dec., Ex. 4), many of the emails requested were not in Plaintiff’s Sunpoint’s possession because they were Magidov’s internal emails or emails between Magidov and Michael Thchalikian (Sunpoint’s accountant), someone other than Plaintiff Sunpoint. Defendant Johnson demonstrated that the emails sought were not obtainable from a party.

Finally, Defendant Johnson has been reasonable in joining with Plaintiff Sunpoint to agree that the parties (not Magidov) will split the cost of production 50/50.

Defendant Johnson represented to the Court he was informed on January 16, 2026, two weeks ago, that Magidov has retained a third party e-discovery vendor to process and produce the documents, but that he had not received the remaining documents as of January 23, 2026. (Jacob's Reply Dec. ¶ 8)

The court finds that it is justifiable for Magidov to wish to redact sensitive financial information such as Social Security numbers from the remaining attachments to emails. Defendant Johnson makes no argument that he should have access to this information. He argues that the Stipulated Protective Order should be sufficient to assuage Magidov's concerns in this regard. The court agrees with Magidov that merely labeling files "for Attorney's Eyes Only" is not a reasonable security precaution given the highly sensitive and confidential nature of Social Security numbers.

The court believes Defendant Johnson and Plaintiff Sunpoint should have a better paper trail of efforts to meet and confer regarding retaining an e-vendor to handle Magidov's documents. After all they have agreed to split the costs of Magidov's production.

It has been three months since Magidov produced the 1500 pages of emails *sans* attachments. Magidov's silences, such as from October of 2025 to January 15, 2026 do not appear to be justified, and in particular Defendant Johnson's email from November 4, 2025 contains a handful of concerns in addition to the redaction issue which do not appear to have been resolved.

Orders

The court finds that Magidov has not substantially complied with the Subpoena issued in March of 2025. The court orders Magidov to pay Defendant Johnson sanctions in the amount of \$6,500, due and payable immediately.

Magidov is ordered to redact Social Security numbers from the attachments, and produce the redacted documents within 30 days of the entry of this order. The court orders the cost of redacting Social Security numbers from the attachments to be borne by the parties 50/50, in the same manner as they are sharing costs of the e-vendor.

13. 9:01 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION, AMENDED RESPONSES, AND RECORDS**

FILED BY: CLANCY, TIMOTHY F.

TENTATIVE RULING:

Plaintiff Timothy Clancy brought a Motion to Compel Deposition, Amended Responses and Records and Monetary Sanctions Against Defendant and Counsel, Lewis Brisbois.

Defendant Gary Johnson filed opposing papers in which he requested the court order sanctions against the Plaintiff and his counsel.

[1] Motion to Compel Continued Deposition of Defendant